

24STCV04366 24STCV04366

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24STCV04366 Hearing Date: August 26, 2026 Dept: 735

Chung, et al. v. Lee, et al.

Motion for Attorney Fees and Costs

BACKGROUND

In

February 2024, Plaintiff Jae Min Chung filed this derivative action as an

individual and on behalf of members of the Los Angeles Korean 1st Presbyterian

Church Corporation. In October 2024, the Court denied Plaintiff's motion for a

preliminary injunction. She filed a Notice of Appeal of that order the same

day. On April 7, 2025, Plaintiff's appeal was dismissed at Plaintiffs' request.

In its remittitur, the Court of Appeal ordered that "[c]osts, if any, are

awarded pursuant to California Rules of Court Rule 8.278."

Defendant

Hwa Chong Kang filed a motion for attorneys' fees and costs on May 12, 2025,

seeking \$24,305.00 in attorneys' fees and \$24,305.00 in costs based on Civil

Code section 1717, Rule of Court 3.1702, and a provision contained in the disputed Deed of Trust recorded January 10, 2023. Plaintiff opposes the motion, arguing, among other things, that it is premature.

DISCUSSION

Whether

or not fees are recoverable based on Civil Code section 1717, principles of reciprocity, or relevant Rules of Court, Defendant's motion is denied without prejudice as premature.

As

to costs: costs are recoverable after dismissal of an appeal pursuant to Rule of Court 8.278. Rule 8.278 applies the ordinary method for recovery of costs: a prevailing party awarded costs on appeal must file a memorandum of costs, which is subject to a motion to tax or strike. (Cal. Rule of Court, Rule 8.278(c)(1).) Defendant's demand for costs by noticed motion does not conform to the proper procedure. It is not plain that Defendant is the prevailing party after Plaintiff's voluntary dismissal. Regardless, for purposes of the appeal only, Defendant filed no memorandum, which is the proper method for recovery. The Court defers the question whether costs may be awarded to Defendant as a prevailing party or credited against any recovery by Plaintiff until after rendition of judgment.

Attorneys'

fees incurred in an interim appeal are similarly not awardable until after

entry of final judgment. (Chen v. Valstock Ventures, LLC (2022) 81

Cal.App.5th 957, 970-983.) Plaintiff appealed the Court's order on a

preliminary injunction; the dismissal of the appeal did not finally resolve any

claim against any party. Defendant's request for prevailing party fees is

premature.

CONCLUSION

The

court denies Defendant's motion for attorney fees and costs without prejudice.

Plaintiff

shall give notice.